

HOW HAVE *YOU* BEEN?



The Civil Servant Law

- It is difficult to attribute the Ethiopian civil servant law to a single law.
- For instance the we have Civil servant law
- Higher education Proclamation
- Custom and revenue administration law
- Police and Military
- Judges and prosecutors
- MOPs



Introductory Remarks

Unlike labor law, civil servant law is not the exclusive jurisdiction of federal government.

Rather states may come up with their own civil servant law in accordance to Art 52 of the constitution.



Objective of the law

- to strengthen the justice system so as to give civil servants better protection and
- To incorporate in a new law the changes occurring as a result of the implementation of the human resource management sub-program of the civil service reform program;
- to address The problems identified during the implementation of proclamation No. 262/2002 and give the later sufficient clarity;

Scope of Application:-

- This proclamation shall be applicable on "government institutions" Art 2(3) and "civil servants" Art 2(1).
- Art 2(10(a)-(d) is all about exclusion

Recruitment

Art 12(3):- Vacancies may be filled through recruitment, promotion, transfer or deployment on the basis of the human resource plan.

Art 13

The principle of post contractual non-discrimination

Competency as a requirement

Affirmative action

Eligibility to be a civil servants:-

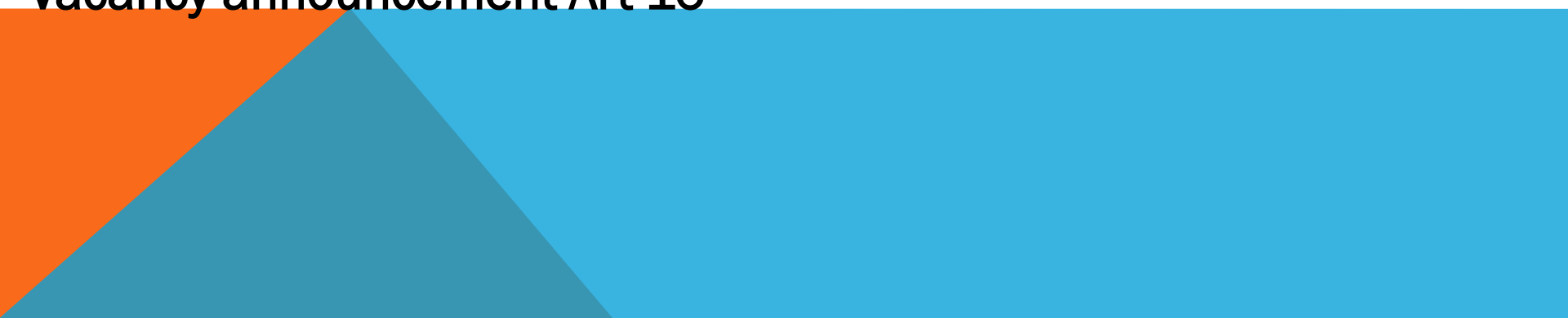
Article 14

Article 15

Art 16 and 17:- medical certificate, examination and police record

Oath of fidelity

Vacancy announcement Art 16



Probation:

Is mandatory

Duration:- 6-9 months

Purpose: - to prove the competence of a newly appointed civil servant through follow-up of his performance.

The Service will be terminated if the probationary civil servant is found to be incompetent.

Unless otherwise provided in this proclamation, a civil servant shall have during the probation period, the same right and obligations that a civil servant who has completed his probation.

Permanent Appointment

Art. 21

There are circumstances by which the government institutions may hire an employee for the temporary period Art 24

Benefits:

Promotion: Art 23-25

Transfer Art 26

Redeployment: Art 30 It is when the employer institution is dissolved or the post held by the employee is cancelled.

Medical Benefits Art 46

Training



Termination of employment relations

Grounds:

Resignation

by giving a one month prior notice, resign at any time

Termination Due to Illness

Where a civil servant is unable to resume work within the time specified under Article 42/2/ and /4/ of this Proclamation.

Termination on Grounds of Inefficiency

The service of a civil servant who has completed his probation period may be terminated due to inefficiency where his performance evaluation result is below satisfactory for two successive evaluation periods despite exerting all his knowledge and ability to accomplish his work.

Termination due to Force Majeure Situations

A civil servant who has completed probation and is absent from work due to force majeure, shall inform the situation within one month to the respective government institution.

- **Retirement**

- The service of a civil servant, whose service is not extended beyond retirement age pursuant to article 89, shall be terminated on the last date of the last month in which he attained the retirement age determined by law.

- **Termination on the Ground of Death**

- The service of a civil servant shall be terminated on the day of his death.

- **Absence**

- Nullification of Appointment

- **Retrenchment**

- Any civil servant shall be retrenched where: a) his position is abolished; b) the government office is closed; or c) redundancy of man power is created;

Termination of Service due to Disciplinary Grounds:

- The service of a civil servant shall be terminated where: a) a disciplinary penalty under Sub-Article 1/f/ of Article 67 of this Proclamation is imposed on him; and
 - The penalty is not revoked on appeal made under Article 76 of this Proclamation.
- Where the penalty is mitigated or revoked on appeal the civil servant shall be entitled without interest, the payment of his unpaid salary withheld during the appeal.

Effects of Termination

- **Certificate of Service** Where the service of a civil servant on service is terminated for any reason or where he so requests, he shall be provided with a certificate of service indicating the type and duration of service as well as his salary,
- **Severance Pay**



Minimum Working Conditions

1. Salary Art 6- 10

Salary scale

Equal pay for equal work

2. Working hours

Regular Working Hours Art 32 and 33

Overtime work: Art 34

3. Public holidays and weekly rest days Art 35

4. Annual Leave

Art 36

5. Serving for at least 12 months is a requirement
20 days for the first year of service and 30 days for the maximum

Maternity and Paternity leaves Art 41

Extended protection is available for pregnant civil servants

See for instance Art 41(3, 4, and 5)

Art 41(6) paternity leave

Occupational safety and health

Precautionary measures

See Art 48

Remedial measures

Employment injury Art 47(2)

Employment accident

Occupational disease

Level of disablement and their benefits

Art 49 -54

Claims of compensation from third party

Disciplinary measures and Grievance Procedures

Objectives of Disciplinary measures

To rehabilitate

To dismiss

Rigorous Penalties

Art 67(1) (d)-(f) demotion, dismissal

Art 68: grounds for rigorous penalties

Simple penalties

Art 67(1) (a) - (c) oral and written warning, fine for one month salary

The power to take disciplinary measure Art 69

Disciplinary committee

Suspension for investigation:- Art 70

Period of limitation Art 71

- **Six months for offences entailing simple penalty.**
 - **For offences entailing rigorous penalty the criminal law shall be made applicable.**
 - **Six months for any kind of payment**
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Dispute Settlement Mechanisms

1. Grievance Handling Committee Art 72 and 73

2. Civil service tribunal

Have the powers given to ordinary courts under the civil servant law

Jurisdiction of the Administrative Tribunal Art. 75

The Administrative Tribunal shall have the power to hear and decide on *appeals* brought by a civil servant relating to:

- 1) unlawful suspension or termination of service;
- 2) being penalized by rigorous disciplinary penalty;
- 3) an illegal attachment or deduction of his salary or other payments;
- 4) infringement of his rights arising from an employment injury;
- 5) except provided in Article 73/7/ of this Proclamation ,cases investigated and decided upon by grievance handling committee;
- 6) matters arising from his request for termination letters and testimonials of service.

Decision of the Administrative Tribunal

The Administrative Tribunal may Confirm or reverse the decision or vary the decision in favor of the appellant

The decision on question of facts shall be final;

Federal Supreme Court

However, that anyone of the parties may appeal to the Federal Supreme Court on

question of law within 30 days from the date of the decision of the Administrative Tribunal.

THANK YOU